Cooper & Quinn LLP

Pasadena, TX
Phone 832-555-2058

Settlement Demand

10/24/2023

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1317 - Demand for settlement

Dear Claims Representative:

Our office represents Michael Gilbert in connection with the motor vehicle collision that occurred on 03/26/2023. Our client was driving within the posted limit when another vehicle crossed into their lane and struck them head-on. The impact was at low speed, but it was enough to cause a sudden jolt through the body and to leave our client with neck and back strain.

Since the collision, our client has experienced persistent neck stiffness, lower back pain, and headaches that interfere with sleep and with ordinary daily tasks. Our client has followed the treatment plan recommended by their physician, including physical therapy and prescribed medication, and continues to attend appointments. Records documenting the diagnosis, the course of care, and the associated costs are enclosed for your review.

The facts of how the collision happened are not in serious dispute. Your insured's vehicle crossed the centerline, and liability rests with your insured. We therefore ask that you evaluate this claim promptly and in good faith.

Our client will accept $213,000.00 in full settlement of all claims arising from this collision. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we are prepared to file suit without further notice.

Expert review: Curtis James, biomechanical engineer

Sincerely,

Matthew Day
Cooper & Quinn LLP